



Appeal Decision

Site visit made on 15 June 2026

by R E Jones BSc (Hons) DipTP MRTPI

an Inspector appointed by the Secretary of State

Decision date: 19 August 2026

Appeal Ref: 6005916

Parcel 1643 Middle Piece Lane, Burnett, Keynsham BS31 2ED

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a refusal to grant planning permission.
 - The appeal is made by G Hall against the decision of Bath and North East Somerset Council.
 - The application Ref is 24/02489/EFUL.
 - The development proposed is Installation, operation and decommissioning of renewable energy generating station comprising ground-mounted photovoltaic solar arrays together with transformer stations, site accesses, internal access tracks, security measures, access gates, other ancillary infrastructure and landscaping and biodiversity enhancements.
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Decision

1. The appeal is allowed and planning permission is granted for the installation operation and decommissioning of renewable energy generating station comprising ground-mounted photovoltaic solar arrays together with transformer stations, site accesses, internal access tracks, security measures, access gates, other ancillary infrastructure and landscaping and biodiversity enhancements at Parcel 1643 Middle Piece Lane, Burnett, Keynsham BS31 2ED in accordance with the terms of the application Ref 24/02489/EFUL, and subject to the conditions in the attached schedule.

Preliminary Matters

2. The proposed development falls under the consideration of the Environmental Impact Assessment Regulations (EIA Regs). In accordance with the EIA Regs an Environmental Statement (ES) was submitted with the application.
3. My decision has considered the environmental information in the ES, the likely environmental effects together with mitigation measures to avoid, prevent, reduce and offset likely significant adverse effects of the development on the environment. Regard has also been given to the results of consultations undertaken with statutory consultation bodies and other interested parties.
4. There are listed buildings near the appeal site. As required by section 66(1) of the Planning (Listed Buildings and Conservation Areas) Act 1990 (The Act) special regard will be given to the desirability of preserving the buildings or their settings or any features of special architectural or historic interest which they possess.
5. A new National Planning Policy Framework (the Framework) was issued in August 2026, following the submission of the appeal. In the context of this case and the main issues being considered there are no fundamental changes, in my view, between the new and the previous 2024 Framework. As a result, I have not sought further submissions on the new Framework, and I am satisfied that no party's

interests have been prejudiced by taking this approach. My reference to the Framework throughout this decision, unless otherwise specified, will be in relation to the new August 2026 version.

Main Issues

6. The main issues are:

- (i) Whether the proposal would be inappropriate development in the Green Belt having regard to the Framework and relevant development plan policies;
- (ii) The effect of the proposal on the character and appearance of the area; and
- (iii) The effect of the proposal on the setting of listed buildings located nearby.

Reasons

Green Belt

- 7. The appeal site comprises an extensive area of agricultural land within the North Somerset Green Belt. It consists of four large fields that slope from the northern boundary along Gypsy Lane down to the southern perimeter at Middle Piece Lane. An industrial estate is located a short distance from the site's northern boundary, whilst the village of Burnett is located to the west. Notwithstanding the presence of the village and the adjacent industrial estate the surrounding area has a predominantly rural character.
- 8. The proposal involves the installation of a solar farm together with associated infrastructure, site accesses and internal access tracks. The solar arrays would cover a sizeable proportion of the site's 28 hectare area. They would be ground mounted reaching a maximum height of around 3 metres. The remainder of the site would predominantly be given over to planting and biodiversity enhancements.
- 9. The Framework attaches great importance to Green Belts and states that the fundamental aim of Green Belt policy is to prevent urban sprawl by keeping land permanently open. The Framework outlines that development in the Green Belt will be inappropriate unless it meets a number of exceptions, which include, in part, whether a development would utilise 'grey belt' land.
- 10. For the purposes of decision-making, 'grey belt' is defined by the Framework as land in the Green Belt comprising previously developed land and/or any other land that, in either case, does not strongly contribute to any of purposes (a), (b), or (d) in Policy GB2 of the Framework.
- 11. The purpose of Policy GB2 (a) is to prevent the unrestricted sprawl of large built-up areas. Keynsham to the north is the nearest large built-up area to the appeal site. Located around 900m away the appeal site is not considered to be adjacent to Keynsham. Although the separation distance is not large the ridgeline running along the site's Gypsy Lane boundary, together with nearby Burnett and the industrial estate, serve to physically contain the appeal site.
- 12. Given the appeal site's physical separation from Keynsham and the absence of intervisibility between the two, it cannot reasonably be concluded that the proposed development would give rise to unrestricted sprawl originating from the

settlement. The appeal site therefore does not make a strong contribution to purpose (a).

13. Policy GB2 (b) is intended to prevent neighbouring towns merging into one another. The appeal site sits roughly between Keynsham and the larger settlement of Bath. Guidance on the assessment of whether land can be considered 'grey belt' is contained in the Planning Practice Guidance (PPG) and Annex E of the Framework. For purpose (b) it advises, areas that contribute strongly will form a substantial part of a gap between towns and the development of which would be likely to result in the loss of visual separation. In this case, whilst the appeal site appears large when viewed at a local level, it nevertheless occupies a very small proportion of the intervening Green Belt land between Keynsham and Bath. Its development as a solar farm would not therefore result in a loss of visual separation between these towns, accordingly the site would not make a strong contribution to purpose (b).
14. Purpose (d) of Policy GB2 intends to preserve the setting and special character of historic towns. From my observations of Keynsham, it contains several historic buildings but is predominantly made up of modern development. There are no details before me of whether it is regarded as a historic town for the purposes of assessing Policy GB2 (d). Even if I found that it was, the appeal site's separation distance and proximity behind the aforementioned ridgeline mean that it would not be seen as part of the setting of Keynsham. As such the appeal site does not strongly contribute to purpose (d). Whilst the historic character of Burnett is recognised, it has not been factored into this assessment, as it is a village rather than a town, given its modest scale and the absence of everyday services and facilities therein.
15. On the basis of the above, the appeal site is considered to constitute "grey belt" land for the purposes of this appeal. However, this does not conclude the assessment of whether a particular development can be regarded as not inappropriate.
16. Policy GB7 (g) of the Framework indicates that development is not inappropriate in the Green Belt subject to four criteria. Criteria (i) requires that development would utilise grey belt land not fundamentally undermine the purposes (taken together) of the remaining Green Belt across the area of the plan.
17. The third Green Belt purpose (c) is to assist in safeguarding the countryside from encroachment. The proposal would lead to a large number of solar panels and associated infrastructure of an industrial character placed on what are currently open agricultural fields. The proposal's size and coverage would result in significant encroachment of the countryside at a local level.
18. Yet, the test set out in Policy GB7 (g) (i) is whether the proposal would fundamentally undermine the purposes of the remaining Green Belt across the plan area, which in this case is the Bath and North East Somerset (BANES) district. In that regard the evidence before me indicates that around 70% of the plan area is designated as Green Belt land¹. Although I do not have specific details of the district's total land area, maps within the evidence indicate that it covers a sizeable area of land, that encompasses large swathes of countryside. In this context and given the extent of Green Belt land within the district, the appeal site's

¹ Informal Guidance Note: Renewable energy in the Green Belt in Bath & North East Somerset

28 hectare area would constitute only a very small fraction of the district's Green Belt. Accordingly, given the proposal's scale and localised effect, in my view it would not fundamentally undermine the purpose of safeguarding the countryside from encroachment.

19. Lastly, the proposal would not undermine purpose (e), which aims to assist urban regeneration and encourage the reuse of derelict and other urban land. Although some interested parties question why the development is not proposed on previously developed land or on buildings / urban land, schemes of this nature are constrained by the availability of a suitable grid connection. As the proposal has secured such a connection, its locational flexibility is limited. Moreover, the development would not fundamentally undermine the fulfilment of this purpose across the remaining Green Belt within the plan area.
20. Therefore, given my earlier findings on purposes (a), (b) and (d), combined with my assessment of purposes (c) and (e) above, I am satisfied that the development would not fundamentally undermine the purposes (taken together) of the remaining Green Belt across the area of the plan. It therefore complies with criteria (g) (i) of Policy GB7.
21. Interested parties have indicated that there is a further "local" purpose that requires proposals *to preserve the individual character, identity and setting of Keynsham and the villages and hamlets within the Green Belt*. The document that refers to this is a draft Green Belt Review from 2013 and I have no evidence of its formal adoption. Moreover, this "local" purpose is not reflected in the Council's current Green Belt policies in the development plan. Besides, the wording of the purpose intends to safeguard local character rather than the fundamental aim of Green Belts which is to keep land open and is therefore not consistent with the more recent requirements outlined in the Framework. Consequently, I have given this additional purpose very limited weight in respect of this main issue. Notwithstanding this, I will consider the proposal's effects on local character and the setting of nearby settlements, later.
22. Policy GB7 (g) (ii) requires that there is evidence of unmet need for the type of development proposed. My attention has been drawn to several local and national policies, statements and targets which highlight the clear and pressing need for further renewable energy infrastructure to meet local and national clean energy and decarbonisation objectives. In terms of energy from solar the Clean Power 2030 Action Plan (December 2024) requires expansion of UK Solar PV from 15GW to 47GW to displace gas, to meet growing demand and to replace retiring plants. While the 15GW baseline may have increased since the report was published, there is no evidence before me to suggest that the target has been established in the interim. Therefore, the proposal would contribute to the current unmet need and in doing so would meet the requirement of GB7 (g) (ii).
23. Policy GB7 (g) (iii) requires consideration of whether the development is in a sustainable location, with particular regard to transport matters. In this case, those considerations are of limited significance. Solar farms are inherently land-intensive developments and are commonly located in rural areas. Traffic associated with the operational phase would be minimal, being restricted largely to maintenance activities, and the proposal would not materially affect the highway network. In the absence of any objection from the highway authorities, I am satisfied that the proposal meets the requirements of Policy GB7 (g) (iii).

24. The final criteria at Policy GB7 (iv) does not apply in this case as it relates to housing development.
25. Drawing the threads of my assessment together the appeal site can be considered grey belt land, and the proposal would not be inappropriate development in accordance with the terms of Policy GB7 of the Framework. In this regard the courts have found that there is consequently no requirement to assess the impact of the development on the openness of the Green Belt.
26. The proposal also complies with Policies CP8 of the BANES Core Strategy (Core Strategy) (July 2014) and Policy GB1 of the BANES Placemaking Plan (Placemaking Plan) (adopted 2014).

Character and appearance

27. The appeal site and the surrounding area form part of an attractive agricultural landscape that has an undulating and open character. The site is broadly contained by roads on all sides, most notably the B3116, the main southern approach road into nearby Keynsham.
28. The four field enclosures that make up the site are large in scale and have a broadly rectangular shape enclosed in part by improved hedgerows and ditches. Fields 1 and 2 form part of a ridgeline and valley side that slopes gently downhill towards the flatter Fields 3 and 4. Given these characteristics and the site's broadly open character Fields 1 and 2 appear prominent in views from roads and public footpaths surrounding the site, particularly in medium to long range views from the south.
29. Burnett is located a short distance to the site's west. From its narrow streets and domestic properties the appeal site can be viewed through gaps in boundary vegetation and through trees and hedges lining the B3116. In this context the site's undulating, open and pastoral appearance provides an attractive background that reinforces the settlement's rural location and enhances its scenic qualities. Therefore, the appeal site's landscape and visual attributes contribute positively to the setting of the village.
30. Policy CP3 of the Local Plan – Partial Update² (the LPPU) supports renewable energy in the context of sustainable development and climate change subject to there being no significant adverse impacts on the local environment that cannot be satisfactorily mitigated. For ground mounted solar schemes, the policy encourages proposals on land which is not linked to nationally protected sites in high, moderate-high and moderate potential areas set out in the Council's Solar Assessment Report. In areas of lower potential proposals will be acceptable provided applicants can clearly demonstrate that adverse impacts on the landscape can be satisfactorily mitigated.
31. The appeal site and the surrounding area lie in the Limestone Plateau and Brook Valleys landscape character type (LCT), and within the Farnborough Landscape Character Area (LCA). The LCA's key characteristics and qualities include undulating plateau landscape incised by brook valleys, a patchwork of arable farmland and villages generally located in valleys. The open and undulating

² Bath and North East Somerset Local Plan: Core Strategy and Placemaking Plan incorporating the Local Plan Partial Update, January 2023.

landscape gives rise to many extensive and scenic views, and for this reason the area is popular for recreation.

32. The Council's Landscape Sensitivity Assessment Report ³ considers the sensitivity of the LCAs in BANES to different scales of solar PV development factoring amongst other things landform and scale, visual character and scenic qualities.
33. Fields 1 and 2 form an expansive area extending several hundred metres in length across a prominent valley slope and ridgeline. Field 1 in particular forms a highly visible component of the surrounding countryside and provides an attractive rural backdrop that contributes significantly to the setting of Burnett. The introduction of extensive solar arrays and associated infrastructure would result in the loss of a substantial area of open pastoral farmland and would introduce a conspicuously industrial form of development into an otherwise undeveloped rural landscape. Consequently, the proposal would significantly erode the pastoral character and appearance of the upper fields (Fields 1 and 2) and diminish the quality of the landscape experienced by receptors, particularly visitors to the area, recreational users and those living in nearby Burnett.
34. I note that the relevant Landscape Character Assessment identifies this area as falling within Band D, indicating a lower capacity for accommodating solar farm developments of between 15 and 30 hectares without detriment to landscape character. In my view, the appeal proposal provides clear evidence of that limited capacity. The scale and extent of the proposed development, particularly within Fields 1 and 2, would be at odds with the area's existing open and pastoral character and would exceed the landscape's ability to accommodate such change without significant harm.
35. Given the size, elevation and sloping nature of Fields 1 and 2, the proposed boundary planting would be less effective in mitigating views, even once fully established. The development would remain appreciably visible and would alter the character of the valley side and wider rural setting. Whilst I have had regard to the submitted viewpoints, the conclusions of the LVIA, and the appellant's contention that the proposal accords with relevant policy, I find that the solar panels, substations, fencing, CCTV equipment and associated infrastructure would have a significant adverse effect on the character and appearance of the local landscape and on visual receptors (including occupiers of nearby residential properties) who currently experience an open, pastoral and largely undeveloped rural environment.
36. By contrast, Fields 3 and 4 are lower-lying, more enclosed and better contained within the landscape. Due to the intervening topography and proposed enhanced boundary planting, the visual effects arising from development within these fields would be more limited.
37. In terms of the proposal's cumulative effect with other solar farms consented or in operation nearby, there are concerns locally regarding in-combination visual effects with the schemes at Farmborough and Marksbury. However, no specific details of the locations of those schemes have been provided that suggest they could be seen in combination or in succession with the proposed scheme and negatively effect local landscape character. Moreover, the ES identified no projects

³ Bath & North East Somerset Council, *Landscape Sensitivity Assessment, Renewable Energy Development, Final Report, August 2021* – authored by Land Use Consultants

which could give rise to cumulative effects with the proposed development. Accordingly, I find no basis to conclude that the proposal would result in an unacceptable cumulative impact on local landscape character.

38. Overall, the proposal would materially alter the existing character, function and experience of the appeal site. Through the large-scale loss of open pastoral land and the introduction of extensive solar infrastructure, the development would industrialise a sizeable part of the local countryside, reducing its scenic value. The proposal would diminish the open rural character of the area and erode the attractive landscape setting of Burnett. Although the degree of effect would vary across the site, I find that the harm arising from development within the upper fields would result in a significant adverse effect on landscape character and visual amenity which would not be adequately mitigated by the proposed planting.
39. Accordingly, the proposal would have an unacceptable effect on the character and appearance of the surrounding area. In doing so it would run contrary to the requirements of Policies NE2 and NE2a of the Placemaking Plan and Policy CP3 of the LLPU. Together these require proposals to conserve local landscape character, the landscape setting of settlements and their views and features, and to satisfactorily mitigate schemes that result in significant adverse impacts on the local environment.

Heritage

40. Although the effect on heritage assets was not a reason for refusal in the decision notice, I am still required, as the decision-maker, under section 66(1) of the Act, to give special regard to the desirability of preserving listed buildings, their setting, and any features of special architectural or historic interest that they possess.

Special interest and significance

41. The village of Burnett located a short distance from the boundary of the appeal site contains several listed buildings.
42. Manor House is a Grade II listed building. The official list entry dates the building from the early-mid 17th century followed by later additions and remodelling. Architecturally the building comprises 3 storeys, a twin span slate roof behind a coped parapet, a two-storey ashlar porch and sash windows. It's scale and detailing have an imposing presence when viewed from the public vantage points in the village. The building's extensive landscaped grounds form an attractive setting where outward views toward the expansive rural landscape beyond the village can be appreciated through gaps between trees along the property's rear. Those views include, in part, the appeal site.
43. Immediately adjacent to Manor House is the Grade II listed Church of St Michael. Dating from the 13th Century the church was later altered and enlarged in the 15th and 19th centuries. It comprises a traditional form that includes a nave, chancel and porch, built in rubble, freestone dressings over a slate roof. When approaching the church entrance and graveyard the undulating green fields, trees and hedgerows beyond the village form an attractive background, that enhance its historic and cultural value as a rural place of worship.
44. To the immediate south and west of the entrance porch to the church are two Grade II listed monuments pertaining to the Ford and A'court Families. These lime

ashlar tombs date from around the 17th century. Their special interest is derived in part from their historical interest and association with those that once lived and played a part in this rural community. Although there are no comparable views of the monuments against the surrounding countryside, as there are for the Church and Manor House, their location within the churchyard, where outward views of the rural hinterland are available, means they would nevertheless be understood as heritage assets set within a rural landscape.

45. Burnett House is a Grade II listed building. This large dwelling dates from the 19th Century. Located near other historic buildings in the village, the property's refined architecture and its landscaped grounds contribute to its special interest and significance.
46. Burnett House is set deeper into the village with no obvious line of sight or intervisibility with the appeal site. Accordingly, it is appreciated more in context with its immediate surroundings rather than the outlying rural hinterland.
47. Although differing in age and architectural detail, the listed buildings referred to derive their significance principally from their architectural and historic interest. Their significance also stems from their village context and continued relationship with the surrounding open countryside. The contribution made by setting varies between the assets. In the case of the church, the monuments and more so the Manor House, significance is also visibly derived from their appreciation within a largely undeveloped rural landscape. In the case of Burnett House, there are limited views of the building in context with the surrounding countryside, and in that case its significance is experienced principally through its architectural form, historic fabric and its garden and village setting.

Effects on heritage assets

48. The placement of a substantial number of solar arrays on the appeal site would materially erode the rural character of the site. When viewed through gaps in the boundaries of both the Manor House and the church the sense of rurality that forms an important backdrop to the significance and special interest of those buildings would be eroded. It is acknowledged that when viewed from the church and Manor House, the solar farm would not totally dominate views or the rural backdrop given the separation distance and the presence of existing planting along the boundary. Nevertheless, the proposal would be visible in both assets' outlook, particularly in eastward views. As a result, the proposal would alter the contribution made by the site's rural setting and, in doing so, would fail to preserve the significance of the listed buildings insofar as that significance is derived from their setting.
49. It is accepted that the proposed boundary planting would, over time, provide increased screening of the solar arrays, particularly within the lower fields. However, as indicated above, this mitigation would be less effective in relation to the panels proposed in Fields 1 and 2, which occupy an elevated slope and would remain comparatively prominent in views from the grounds of both the Manor House and the church (which encompasses the listed monuments).
50. Although the effects of the proposal would be temporary and limited to the operational lifespan of the development, the solar farm would remain in place for up to 40 years. This represents a considerable period during which the identified impact on the setting and significance of the heritage assets would persist.

51. Given Burnett House's location and the intervening buildings and landscaping between it and the appeal site, I have not found there to be any harm to its significance, insofar as that significance is experienced through its setting.
52. Other listed buildings nearby have been referred to, namely Corston Field Farmhouse and Uplands Farm (both Grade II listed). The Council have indicated that due to the separation distance maintained from the proposal and the intervening landscape and topography, that there would be no harm to their setting. Accordingly, I have no reason to believe that those listed buildings would be harmed.
53. The appellant's assessment and the Council's Archaeology advisers did not indicate that the proposal would harm the settings of Scheduled Ancient Monuments (SAMs) in the locality, namely Stantonbury Camp and the Wansdyke. There is no reason for me to disagree with those findings. Moreover, these SAMs are located a significant distance to the south of the appeal site, whilst the intervening topography and planting would primarily screen views and diminish intervisibility.

Findings

54. Drawing all the above together, the proposed development would harm the significance of the Grade II listed Manor Farm, the Church of St Michael and the Monuments to the A'court and Ford families, through development affecting their setting. This would be contrary to Policy HE1 of the Placemaking Plan which requires the significance of listed buildings to be sustained and enhanced.
55. In finding harm to the significance of designated heritage assets the Framework requires the degree of harm to be identified. The solar arrays would not encroach into the most important spaces around the listed church, monuments and Manor House, while clear intervisibility or concurrent views of solar arrays and the listed buildings are tempered somewhat by intervening trees, the separation distance and the mitigation planting. The proposal would also be temporary, rather than permanent. Taking these factors into account, the harm to the heritage assets is judged to be minor (having regard to the terms of the Framework) but, nevertheless, of considerable importance and weight.
56. The Framework requires any harm to designated heritage assets to be weighed against any public benefits resulting from the proposal. I will turn to this in my overall Heritage and Planning Balance.

Other Matters

57. Interested parties have raised concerns regarding the impact upon road safety and congestion in the locality during the construction phase. There are also doubts regarding the suitability of the local road network for large heavy goods vehicles. The Council has raised no objection subject to the proposed mitigation and the management of vehicular movements, while the roads used for construction vehicles are considered acceptable. Accordingly, and subject to planning conditions securing the proposed mitigation and management of the development's construction phase, there would be no significant adverse impact on local highway safety.

58. There are concerns that the appeal site's topography could lead to increased risks of surface water related flooding. There is also unease amongst local residents that breaking ground during construction could allow water to enter aquifers below site. Both the Lead Local Flood Authority and Environment Agency are satisfied that the issues of drainage and flood risk can be addressed, and the development would not result in unacceptable impacts to the flood risk or drainage of the site and surrounding area. Neither have raised any issues regarding the effect upon aquifers. Therefore in light of those findings I have no reason to come to a different view.
59. Although there is evidence of previous archaeological activity at, or in the vicinity of, the site, together with a small number of archaeological features identified during the appellant's site investigations, the majority of the site has been demonstrated to possess low archaeological potential. Accordingly, the Council considers that no further archaeological investigation is necessary. In the absence of any substantive evidence to the contrary, I see no reason to disagree with that conclusion.
60. Notwithstanding this, interested parties have argued that the limited archaeological remains identified are indicative of inadequate sampling. However, the Council's archaeological advisers have not identified any deficiencies in the appellant's investigation or sampling methodology.
61. The appellant's evidence has not indicated any significant unacceptable impacts upon local biodiversity species and habitats that cannot be satisfactorily mitigated. Likewise, the Council's ecology advisers have not raised any concerns subject to appropriate planning conditions that safeguard biodiversity interests during the construction and operational phases. I note that several concerns have been raised regarding the proposal's effect on bat, bird and insect habitat found either at the site or locally. However, without any specific survey details providing information on the population of those species and their habitats, and the scheme's effect, there is limited evidence suggesting there would be material harm.
62. Whilst I acknowledge that the planting and enhancement measures could be done at the site without the need for the development, there is nothing in the evidence to suggest that this would be the case. Besides, my role is to determine the development before me, rather than any theoretical possibilities that could occur at the site.
63. The proposed development would not, subject to the identified mitigation measures and the imposition of appropriate conditions, give rise to unacceptable effects on the living conditions of nearby occupiers by reason of noise, nor would it result in any significant residual environmental effects.
64. An assessment of potential glint and glare effects has been submitted by the appellant. This includes a map showing the proposed solar arrays, along with receptor locations where glint and glare effects could be experienced. Effects upon local residents, road users and aviation interests have been assessed. Although these details theoretically map areas which could potentially receive glint and glare effects, there are limitations to the data including visibility, weather conditions, the orientation of the panels and the screening effects from the intervening landscape and topography.

65. Interested parties have noted that large areas in and around the site including along roads, footpaths and close to properties could be affected by glint and glare effects, including locations adjacent to road junctions where traffic accidents have occurred. However, given the effects of topography, screening, and weather, most reflections would not be visible. Receptors would also have to be present at those locations at that moment in time and during the optimum conditions to experience the effects. Nevertheless, the assessment has identified receptor locations where there would be high impact of glare upon road users of the highways close to the site. This would be mitigated through additional planting along parts of the appeal site's boundary. Accordingly, and subject to the mitigation proposed the proposal would have a low impact upon surrounding receptors.
66. Taking the above findings into account, and subject to the proposed mitigation, there would be no significant adverse impact to receptors arising from the proposal's glint and glare effects.
67. Any fire risks associated with the scheme's battery storage facility would be mitigated through a battery safety and management plan, agreed by condition, in the event the appeal is allowed. This shall set out safety measures and risk mitigation procedures for the construction, operation and decommissioning of the battery facility, and shall include measures to safeguard the water environment and to prevent fire and pollution incidents.
68. Although not listed as a refusal reason, the Council considers that the alternative sites assessment is limited and does not sufficiently account for alternative sites outside of the Green Belt which could result in less harm overall.
69. The appellant's Alternative Site Selection Assessment covered a search area of 4km from the point of connection. Factoring the land area required and various physical and environmental constraints, the number of sites was refined from 43 to 3, with the appeal site eventually selected as the preferred option after balancing factors such as solar radiation potential, site access and environmental constraints. I am satisfied that the chosen site has been selected through a proportionate and robust consideration of reasonable alternatives, having regard to the operational and technical requirements of the development.
70. Given that most of the land within the District is designated as Green Belt, and bearing in mind the importance of maintaining reasonable proximity to the identified point of connection, a search focused on Green Belt land does not appear inherently deficient. Extending the assessment significantly beyond that area would be likely to capture sites subject to materially different technical and economic constraints and would not necessarily provide a more realistic comparison of reasonable alternatives. Consequently, the omission of non-Green Belt land from the assessment does not materially undermine the appellant's assessment.
71. To further emphasise their point that the assessment of alternative sites has not been sufficiently robust, the Council refer to an appeal decision for a Battery Energy Storage System (BESS) at Barton in Fabis⁴. In this case, the Inspector concluded that, in the absence of substantive evidence relating to alternative sites, it could not be demonstrated that suitable sites were unavailable elsewhere in the district outside the Green Belt. However, that case differs in that it was for a BESS

⁴ APP/P3040/W/23/3324608, Land at Barton in Fabis, Nottingham, dismissed 22 January 2024

only, not a solar farm, while also being located in a different part of the country where the details of the developer's search area, and the extent of the Green Belt area within that district are not known. Accordingly, the case before me is not comparable and is clearly distinguished from the Barton in Fabis decision.

72. The appeal site is classed as Grade 4 agricultural land, which is considered to be lower grade agricultural land. Accordingly, the appellant considers that the development would not result in the loss of the best and most versatile agricultural land (BMVAL) and complies with Policy RE5 of the Placemaking Plan. Moreover, the appellant indicates that the site will continue to be used for agricultural purposes such as sheep grazing.
73. Interested parties living nearby indicate that the appeal site has for many years been used for growing crops, contrary to the suggestions that the land is of low quality. Whilst that might be the case Grade 4 land, according to national guidance⁵ has limitations which restrict the range of crops or level of yields. Therefore, in the absence of any detailed evidence which indicates that the site merits a higher land classification, I have no reason to doubt the appellant's findings.
74. Interested parties contend that the proposed development is unnecessary because the Council's ambition to secure 110MW of electricity from renewable energy sources by 2029 has already been achieved. However, there is limited evidence before me regarding the schemes relied upon or the extent of their contribution to that target. In any event, Policy CP3 of the LPPU identifies 110MW as a minimum target rather than a cap. Nothing in the wording of the policy suggests that proposals which would increase renewable energy generation beyond that level should be resisted or would conflict with its objectives. If anything, additional renewable energy capacity would remain consistent with the policy's overall aims in the context of sustainable development and climate change.
75. I have considered the argument that an equivalent amount of solar generation could be accommodated on rooftop installations or previously developed land within the District, potentially with less environmental impact. However, the appeal must be determined on the merits of the proposal before me rather than on the basis of hypothetical alternatives. Moreover, there is insufficient evidence before me to demonstrate that such alternatives would be available, deliverable, or capable of providing equivalent generating capacity within a comparable timeframe.

Heritage and Planning Balance

76. The proposal would cause harm to the designated heritage assets near the site. That harm is judged to be minor but nevertheless of considerable importance and weight. There would be conflict arising from this harm with development plan policies that attracts significant weight.
77. I have also found harm in respect of the proposal's effect on the local landscape as well as the visual amenities of receptors living in and passing through the area. The magnitude of harm in this respect would be significant as would the weight I attach to that harm and the conflict with the relevant development plan policies.

⁵ Guide to assessing development proposals on agricultural land, Natural England

78. As a renewable energy project, the proposal benefits from strong national and local policy support aimed at significantly increasing renewable generation, particularly solar power.
79. The proposed development would deliver significant renewable energy benefits, generating up to 22 GWh of clean electricity annually, equivalent to meeting the needs of around 5,574 households. This would result in the displacement of around 8,000 tonnes of CO₂ per year, based on current emissions factors, making a meaningful contribution to reducing greenhouse gas emissions. The scheme would also make an important contribution to BANES' ambition to secure a minimum of 110MW of electricity from renewable energy sources by 2029, as prescribed by Policy CP3 of the LPPU. I attach substantial weight to these benefits.
80. Although a modest part of the overall scheme the battery storage facility proposed would be able to store excess electricity generated by renewable energy facilities when demand is low and release that energy to the grid at periods of high demand or when electricity generated by renewable sources is low. Given the contribution this would make to enhancing energy security I give this benefit substantial weight.
81. These contributions must be considered in the context of the national commitment to achieving net zero greenhouse gas emissions by 2050, alongside the Council's own declaration of a climate emergency and its ambition to achieve carbon neutrality by 2030. Evidence indicates that substantial and sustained reductions in emissions are required, with annual decreases of around 14 MtCO₂e necessary to meet these objectives. The proposal would make a meaningful contribution towards this requirement.
82. The development would also assist in enhancing energy security, through the provision of a secure, diversified and decentralised source of renewable energy, consistent with national policy objectives. This is of particular importance as the energy sector transitions away from fossil fuels and responds to increasing demand.
83. National policy, including the Framework and National Policy Statements, makes clear that renewable energy proposals and their associated infrastructure should be afforded substantial weight, reflecting their role in the transition to a net zero future and improving energy security.
84. The provision of ecological and landscape enhancements at the site through Biodiversity Net Gain (BNG) would achieve a 54.33% net gain of habitat, 12.95% of hedgerows and 19.88% of watercourse units. These benefits attract moderate weight. I also give moderate weight to the provision of local jobs during the build and operational phases as well as the associated expenditure in the local economy.
85. Taken together, these considerations weigh substantially in favour of the proposal and offset the harm and weight I have given to the proposal's effects on the setting of listed buildings and local character and appearance as well as the associated conflict with the development plan. Accordingly, the proposal is judged to be acceptable, having regard to the material considerations.

Conditions

86. The main parties submitted suggested conditions, which I have amended or omitted where appropriate to ensure compliance with the tests in Policy DM6 (1) of the Framework. I therefore consider the following conditions to be necessary.
87. Conditions specifying the approved plans and a timescale for the commencement of development are necessary in the interests of certainty.
88. A condition specifying the operational lifespan of the solar farm, along with requirements for its decommissioning and site restoration, is necessary to safeguard landscape character and to ensure the land is restored to its former agricultural condition. Allied to this, a condition requiring details of the scheme's first export date is necessary to determine the operational lifespan of the development and to inform the terms of other conditions.
89. In the interests of highway safety, it is necessary to attach a condition requiring the completion of the development in accordance with the submitted highways works drawings and details. A construction management plan (CMP) condition is also necessary to safeguard highway safety impacts and local living conditions during the build phase.
90. Further conditions are necessary to protect local amenity and the health and safety of site operatives and nearby receptors, including controls and compliance with noise emission thresholds, procedures for addressing potential land contamination, the provision of on-site fire hydrants, and the safe management of the site's battery storage infrastructure.
91. A condition requiring the development to be carried out in accordance with the submitted Flood Risk Assessment and Drainage Strategy is necessary to ensure no unacceptable flooding or drainage events in the locality.
92. During the construction phase it is necessary in the interests of local biodiversity and the protection of existing landscape features to include conditions requiring the submission of a construction and environmental management plan and a arboricultural method statement and tree protection plan. I have also considered it necessary, in the interests of local biodiversity, to include conditions requiring that the development is completed in accordance with a Landscape and Ecological Management Plan (LEMP) and confirmation that it has complied with the requirements of the submitted Wildlife and Bat Mitigation Enhancement scheme. Any future external lighting proposals at the site shall be submitted to and approved in writing by the Local Planning Authority, in the interests of local living conditions and to protect local biodiversity and habitats.
93. In the interests of the area's landscape and visual amenities, details of soft and hard landscaping at the site shall be agreed prior to the commencement of development. It is also necessary in the interests of visual amenity to include a condition agreeing the finished colour of on-site infrastructure and buildings.
94. The appeal proposal is subject to statutory biodiversity net gain (BNG). However, it is not necessary to impose the Council's suggested condition requiring the submission of a biodiversity gain plan (BGP) because the deemed biodiversity gain condition, under paragraph 13 of Schedule 7A to the Town and Country Planning Act 1990 (as amended), ensures that the development cannot

commence until a BGP has been submitted to and approved by the local planning authority.

95. The Council's suggested condition requiring the submission of a compliance statement relating to arboricultural works is not necessary, as this can be enforced through the condition securing the necessary statement in relation to those works.
96. A condition requiring compliance with CCTV and security specifications is not necessary, as this has been included within the approved plans condition referred to above.
97. The pre-commencement conditions imposed in respect of the CMP, CEMP, potential site contamination, landscaping and the arboricultural method statement and tree protection plan are necessary to establish ground conditions, safety procedures and environmental protection measures before construction takes place.

Conclusion

98. The proposed development would conflict with the development plan, but material considerations indicate that a decision should be made other than in accordance with it.
99. Therefore, for the reasons given above the appeal should be allowed.

RE Jones

INSPECTOR

Schedule of Conditions

1. The development hereby permitted shall be begun before the expiration of three years from the date of this permission.
2. Unless otherwise agreed in writing by the Local Planning Authority, the development hereby permitted shall be carried out in accordance with the following schedule of plans: Drawing 16 Feb 2026 1322/09 Rev J LANDSCAPE AND ECOLOGICAL ENHANCEMENT PLAN; Drawing 15 Oct 2024 2303-010_SK01-B PROPOSED SITE ACCESS; Drawing 15 Oct 2024 2303-010_SK03 PROPOSED SITE ACCESS CONSTRUCTION DETAIL; Drawing 15 Oct 2024 2303-010_SK03 GRID CONNECTION PLAN; Drawing 15 Oct 2024 CRE020-CCP-05 CONSTRUCTION COMPOUND PLAN; Drawing 01 Jul 2024 CEL-STD-SUB-WPD-206 SUBSTATION; Drawing 01 Jul 2024 CRE020-SD-01 REV04 MVS3200 SUBSTATION TRANSFORMER; Drawing 01 Jul 2024 CRE020-SD-02 REV 04 CUSTOMER SWITCHGEAR; Drawing 01 Jul 2024 CRE020-SD-03 REV 04 INDICATIVE DEER FENCE; Drawing 01 Jul 2024 CRE020-SD-04 REV 04 PALISADE FENCING; Drawing 01 Jul 2024 CRE020-SD-05 REV 04 ACCESS TRACK CROSS SECTION; Drawing 01 Jul 2024 CRE020-SD-06 REV 05 ENTRANCE GATE PLAN; Drawing 01 Jul 2024 CRE020-SD-07 REV 04 STANDARD DRAWINGS - INDICATIVE CCTV POST; Drawing 01 Jul 2024 CRE020-SD-08 REV 04 PV ARRAY CROSS SECTION; Drawing 01 Jul 2024 CRE020-SD-09 REV 05 20FT BATTERY CONTAINER; Drawing 01 Jul 2024 CRE020-SD-11 REV 02 20FT CONTAINER BATTERY INVERTER; OS Extract 01 Jul 2024 CRE020-SP-01 REV 08 SITE LAYOUT; and the Neo Environmental Glint and Glare Assessment dated 19 Dec 2023.
3. The development hereby permitted shall cease operating on or before the expiry of a 40-year period from the date of the first export of electricity. The land shall thereafter be restored to its former condition in accordance with a scheme of decommissioning which shall be submitted to and approved in writing by the Local Planning Authority no less than 6 months prior to the 40th anniversary of the first export date.
4. Notification of the date of first export of electricity shall be given in writing to the local planning authority within 1 month of the date of first commercial export occurring.
5. No development shall take place until a Construction Management Plan (CMP) is submitted to and approved in writing by the Local Planning Authority. This shall include details of the following: 1. Deliveries (including storage arrangements and timings); 2. Contractor/visitor parking; 3. Traffic and parking management; 4. Work phasing, including installation, removal, and reinstatement of temporary works; 5. Working hours; 6. Site opening times; 7. Wheel wash facilities; 8. Site compound arrangements; 9. Measures for the control of dust. The construction of the development shall thereafter be undertaken in accordance with the approved details.
6. No development shall take place until a Construction Environmental Management Plan (CEMP) is submitted to and approved in writing by the Local Planning

Authority. The CEMP shall incorporate (but not limited to) pollution prevention measures and the recommendations of the approved Preliminary Ecological Appraisal dated May 2025 by Western Ecology. The CEMP shall subsequently be implemented in accordance with the approved details and agreed timetable.

7. No development shall take place until a Desk Study and Site Reconnaissance (Phase 1 Investigation) survey is undertaken to develop a conceptual site model and preliminary risk assessment of any contamination on site and submitted to and approved in writing by the Local Planning Authority.

In the event that contamination is found from the Phase 1 Investigation where remediation is necessary, no development shall commence, until an investigation and risk assessment of the nature and extent of contamination on site and its findings has been submitted to and approved in writing by the Local Planning Authority. This assessment must be undertaken by a competent person, and shall assess any contamination on the site, whether or not it originates on the site. The assessment must be conducted in accordance with DEFRA and the Environment Agency's 'Model Procedures for the Management of Land Contamination, CLR 11' and shall include: (i) a survey of the extent, scale and nature of contamination; (ii) an assessment of the potential risks to: human health, property (existing or proposed) including buildings, crops, livestock, pets, woodland and service lines and pipes, adjoining land, groundwaters and surface waters, ecological systems, archaeological sites and ancient monuments; (iii) an appraisal of remedial options, and proposal of the preferred option(s).

The development shall be implemented in accordance with the approved details.

8. No development beyond initial ground works shall take place until full details of both hard and soft landscaping proposals and a programme of implementation have been submitted to and approved in writing by the Local Planning Authority. These details shall include:

1. Proposed finished levels or contours
2. Means of enclosure
3. Car parking layouts
4. Other vehicle and pedestrian access and circulation areas
5. Hard surfacing materials

Soft landscape details shall be consistent with the Biodiversity Net Gain Assessment/ Biodiversity Gain Plan/ Ecological Report and shall include:

1. Planting plans
2. Written specifications (including cultivation and other operations associated with plant and grass establishment)
3. Schedules of plants, noting species, planting sizes and proposed numbers / densities
4. Details of features including (as applicable) but not limited to: bat and bird boxes; hedgehog homes; wildlife access points within fencing; and details of all other proposed features to provide additional benefit for wildlife. Details shall be shown to scale on all relevant plans and drawings and shall include proposed models and materials; numbers, positions, heights and fixings, and proposed long term maintenance.

The development shall be implemented in accordance with the approved details.

9. No development shall take place until a Detailed Arboricultural Method Statement with Tree Protection Plan following the recommendations contained within BS 5837:2012 has been submitted to and approved in writing by the Local Planning Authority and details within the approved document implemented as appropriate. The final method statement shall incorporate a provisional programme of works; supervision and monitoring details by an Arboricultural Consultant and provision of site visit records and compliance statements to the Local Planning Authority. The statement should also include the control of potentially harmful operations such as the storage, handling and mixing of materials on site, burning, location of site office, service run locations including soakaway locations and movement of people and machinery.
10. The development hereby permitted shall be carried out in accordance with the approved 'Flood Risk Assessment and Drainage Strategy, Middle Piece Lane Solar Farm, Project ref: RMA-C2644 by Aardvark EM Limited, dated 18 September 2024, version 7 and FRA Addendum Dated 19 June 2024 by RMA Environmental' including specific mitigation measures detailed therein.
11. Within 3 months of the first export of electricity from the development hereby permitted, a noise validation report shall be submitted to the Local Planning Authority for its written approval.
12. Prior to the installation of any battery units within the development hereby permitted, a detailed Battery Safety Management Plan (BSMP) shall be submitted to, and approved in writing by, the Local Planning Authority. The BSMP shall set out safety measures and risk mitigation procedures for the construction, operation and decommissioning of the battery facility, and shall include details of fire prevention measures including the provision of 4 fire hydrants, measures to safeguard the water environment and to prevent pollution incidents. The battery units shall thereafter be installed, operated and maintained in accordance with the approved BSMP for the duration of the permission.
13. Prior to the first export of any electricity from the development the highway works shown on drawing number 2303-010 SK01 Rev B, shall be provided. There shall be no on-site obstruction exceeding 900mm above ground level within the visibility splay. The visibility splay shall be retained permanently thereafter.
14. Before any structure, equipment or infrastructure including the supporting frames for the PV panels is first brought onto the site, details of the intended finish colour shall be submitted to and approved in writing by the Local Planning Authority. The items and any replacement panels shall be finished in this colour and shall be retained in this finish hereafter.
15. Prior to the first export of any electricity generated by the development hereby permitted, a Landscape and Ecological Management Plan (LEMP) shall be submitted to and approved in writing by the local planning authority. Details shall include (but not limited to) locations and boundaries of habitats; habitat target conditions and target maintained heights and widths of hedgerows; and management units / areas; additional features to benefit wildlife; all such details shall be accurately shown on a plan and include a list of activities and operations that shall not take place and shall not be permitted within the LEMP area or within

specific habitats (for example use of herbicides, waste disposal, inappropriate maintenance methods, storage of materials). Provision shall also include a monitoring and reporting scheme, to include ongoing review, reporting, and a remediation strategy. The development shall be implemented in accordance with the agreed details.

16. Prior to the installation of any external lighting on the site, full details of the proposed lighting shall be submitted to and approved in writing by the Local Planning Authority. The lighting installation shall then be carried out in accordance with the approved details and retained as such thereafter.
17. Prior to the first export of electricity a compliance report (based on post-construction on-site inspection by a suitably experienced professional ecologist) shall be submitted to and approved in writing by the Local Planning Authority. The report shall confirm that the measures set out in the approved Wildlife and Bat Mitigation and Enhancement Scheme have been fully implemented in accordance with the approved details.

*****End of Schedule*****